



DevBuds Technologies Pvt. Ltd.

Surat, India

Date: **06.01.2024**

To,

Mr. **Mohamed Atef Abdallah Hamed**

Address: **Egypt, North Sinai, El-Arish, El-Masaeed, El-Edary, behind the building of Barghoth Center for Ceramic, building no. 7 in the street, next to Mohamad Saad market.**

APPOINTMENT LETTER(Remote)

We are pleased to offer you, the position of **Android Developer** at **Devbuds Technologies** on the following terms and conditions.

1. Employment

1.1 Job Title: Android Developer

1.2 Workplace shall be from Home

1.3 Employee ID DB006

1.4 Your employment will be effective, as of 8th January 2024

1.5 Probation Period : 04 Months from the Effective date

1.6 In accordance with company regulations, before joining you are obligated to provide proof documents of the following points :

- Address Proof – Local & Permanent
- Copies of previous appointment letters and Reliving letter/Experience Certificates
- Salary slips / Bank statement (Last 3 months)
- Driving License / Passport / ID

In addition to the above, we are attaching your Employment Agreement which includes the terms and conditions applicable to you during the term of your employment with DevBuds Technologies (India) Pvt Ltd. Please signify your acceptance by executing the+ attached Employment Agreement by initiating each page and executing the last page. You may keep a copy of the same for your records.

We look forward to having you as a member of our dream team.

Yours sincerely,

For, DevBuds Technologies Pvt. Ltd.

Bashar Mahajna,

EMPLOYMENT AGREEMENT

THIS EMPLOYMENT AGREEMENT (the “**Agreement**”) executed on the **8th January 2023**(the “**Effective Date**”),

By and Between

DevBuds Technologies (India) Pvt. Ltd. Is a firm having its Head office located in Surat (hereinafter referred to as the “**Employer**” which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include its affiliates, permitted assigns, and successors) of the One Part.

And

Mr. Mohamed Atef Abdallah Hamed, with a permanent address at **Egypt, North Sinai, El-Arish, El-Masaeed, El-Edary, behind the building of Barghoth Center for Ceramic, building no. 7 in the street, next to Mohamad Saad market.** hereinafter referred to as the “**Employee**” which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include his / her successors, legal representatives, heirs and permitted assigns) of the Other Part.

*(The Employer and Employee may hereinafter individually be referred to as “**Party**” and collectively as “**Parties**”)*

NOW THEREFORE IN VIEW OF THE MUTUAL COVENANTS, PROMISES AND REPRESENTATIONS CONTAINED HEREIN AND WITH THE INTENTION OF BEING LEGALLY BOUND THE PARTIES HERETO AGREE AS FOLLOWS

1. TERMS & CONDITIONS

Subject to the terms of this Agreement, the Employer hereby appoints the Employee as **Android Developer** during the term of this Agreement for the purpose of providing the services and performing the duties assigned to it by the Employer from time to time.

- You shall serve the company during such hours as may be prescribed or decided from time to time by the company.
- You shall have to work on the Internal Libraries, Framework, Development Tools & Environment of DevBuds Inc. during the employment as may be prescribed from time to time by the company. Denying the same shall be deemed as breach of terms & conditions of your appointment.
- That you shall in the discharge of duties confirm to and comply with all the rules and regulations of the Company, and shall not do or supposed to be done anything against the interest of the Company.
- If working days are less than 19 in a Month, only working days will be considered and paid.
- You have been offered 100% remote work from home position. You have to make sure you have peaceful environment, proper internet connection, powerful laptop and other required equipment's to perform your duty without any issues.
- Employees must serve 2 months (after completion of one year) of notice period, Notice period will be considered valid only after management receive written request by mail.
- Full and final settlement due will be cleared after completion of minimum 30 days before next pay day.
- Former employee must respond and provide support within 30 days of Final Settlements, if any support arises.
- If non-working days are equal or more than 30 will extend the contract for that many days.

2. SALARY, INCREMENTS AND PROMOTIONS

Your monthly total Cost to Company is 750\$, in words seven hundred fifty USD.

- 2.1 The Salary, shall be payable in arrears at the 10th date in next month, in accordance with the terms of the Letter of Appointment or subsequent alterations or amendments, if any, communicated in writing to the employee.
- 2.2 The Employee shall not incur any expenses or charge the Employer for any other cost or expense unless such cost or expense has been pre-approved in writing by an authorized officer of the Employer.

Periodical improvements in the Remuneration plan of the employee and his promotion to higher positions in the Company are not automatic but will depend on the employee's contribution to the growth of the Company and the results achieved by him in the sphere of activities assigned, as assessed and evaluated by the Management.

3. EMPLOYEES' OBLIGATIONS & COVENANTS

- 3.1 The Employee shall forthwith act upon the instructions issued by the Employer or its authorized officer and perform the services in a timely and efficient manner. The Employee shall always during the provision of the Services under this Agreement or any renewal or amendment thereof:
 - a. Provide all services with due care and attention; and
 - b. Not use any facilities, equipment, or infrastructure provided by the Employer for any personal use or another purpose not contemplated by this Agreement.
- 3.1 The Employee has the requisite experience and authority to perform the Services.
- 3.2 The employee declares that he is familiar with the company's field of activity and declares that he has the skills, knowledge and ability required to fulfill the position, and that there is no legal or otherwise preventing him from entering into this contract and fulfilling his obligations under this agreement.
- 3.3 The Employee shall not be employed or associated, part-time or in full, with or engaged in any other activity or business which may compete with the activities of the Employer during the Term of this Agreement. The Employee will further not engage in any other commercial activity during the Term unless approved in writing by the Director of the Employer.
- 3.4 The Employee shall use commercially reasonable efforts to provide the services in a manner that always reflects favorably the good name, goodwill, and reputation of the Employer. The Employee shall not engage in any practices or make adverse references in the market or otherwise, that cause harm to the reputation of the Employer.
- 3.5 The Employee shall always during its employment or while on the Employer's premises, observe the Employer's service rules and regulations with respect to inter alia timings, conduct, health, hygiene and safety and protection of persons and property and as may be amended from time to time.
- 3.6 The Employees provision of Services under this Agreement or any activity ancillary or related thereto shall not violate (i) any applicable law, rule, or regulation; (ii) order of any governmental authority; (iii) any law-and-order proclamation or other directions applicable and having the force of law; or (iv) contracts with third parties.
- 3.7 While in the employ of the company, no employee is permitted to engage in additional employment, undertake any form of work or service, whether direct or indirect, honorary or otherwise, without obtaining prior written permission from the Management. Furthermore, no employee shall conduct any personal business while being in the service of the Company.

Additionally, no employee is allowed to have any trade or business affiliations with individuals specified in the annexure, who, in turn, maintain connections with the Company as suppliers, dealers, agents, or contractors, unless explicit consent or written approval is obtained from the management in advance.

4. MISCONDUCT

Misconduct encompasses a range of behaviors, including insubordination, failure to perform assigned duties, theft, fraud, dishonesty, frequent absence, work negligence, misappropriation of company assets, tampering with records, habitual indebtedness, drunkenness, disorderly conduct, actions undermining discipline, conduct contrary to the company's interests, sexual harassment, and violation of any Rules and Regulations of Service and Conduct.

Should an employee be found guilty of misconduct at any point, the management reserves the right to impose one or a combination of the following actions:

- Issuing a warning letter
- Imposing fines and penalties
- Dismissing the employee from service

5. Confidentiality and Non-Compete

- 5.1 Confidentiality: The employee undertakes to maintain the confidentiality of the company's information in accordance with the provisions of the confidentiality protection laws and any related regulations. They shall use confidential information that comes to their knowledge during their tenure solely for the purpose of fulfilling their duties and for the business needs of the company.
You hereby agree that your obligations relating to confidentiality survive the termination of your employment and you shall be liable to pay damages and be subject to injunctive or other relief for any breach of aforesaid obligation.
- 5.2 During the tenure of service, you will keep your emoluments secret from other members of this organization and will treat all information coming to you as strictly confidential and the information contained in all documents and papers and other matters relating to the company will not be divulged by you to any person other than those of the management.
- 5.3 Non-Compete: Throughout the duration of their employment and for a period of one year after the termination of their employment, the manager agrees not to engage directly or indirectly in the company's business sector, and not to establish or participate in a similar or competitive business that could lead to non-competition.

Employees are prohibited from providing financial or other incentives directly to slum dwellers or other stakeholders unless obtain prior written approval from the company's managements. It is crucial for employees to consistently safeguard data, and failure to adhere to this may result in strict disciplinary action. Individuals must ensure the confidentiality of all information related to the company and refrain from discussing it with external parties at all times.

6. Assignment, Transfer and Deputation

- 6.1 Though you have been engaged to a specific position, the company reserves the right to send you on deputation/transfer/assignment to any of the company's branch offices in India or abroad, whether existing at the time of your appointment or to be set up in the future.

- 6.2 The Employee acknowledges that the Employer may from time to time modify its work profile or work responsibilities, which shall be deemed to form an integral part of this Agreement and shall be included in the scope of work and services to be performed by the Employee.

7. Intellectual Property

- 7.1 Employees hereby relinquish all their rights to intellectual property related to the company's developments, including patents, trade secrets, trademarks, copyright, and any other intellectual property rights associated with the company's activities.
- 7.1 Any new intellectual property, whether in whole or in part conceived, made or reduced to practice by the Employee (either solely or in conjunction with others) during or after the Term of this Agreement, which is made through the use of any of the Materials or other confidential information or any of the Employer's equipment, facilities, supplies, trade secrets or time, or which relate to the Employer's business or that of its affiliates, subsidiaries associate companies, or the Employer's research and development, or which result from any work performed by the Employee for the Employer shall belong solely and exclusively to the Employer and shall be deemed part of the Confidential Information for purposes of this Agreement, whether or not available in a tangible medium of expression. Without limiting the foregoing, any such intellectual property will be deemed to be "works made for hire" and the Employer will automatically be deemed to be the owner thereof, provided that in the event and to the extent such works are determined not to constitute "works made for hire" as a matter of law. The Employee hereby irrevocably assigns and transfers to the Employer all right, title, and interest in and to any such intellectual property, including but not limited to all related patents, copyrights, and all applications and filings and notifications, as well as to use, publish, copy, modify, improve, disassemble, translate, manufacture and commercialize, whether directly or indirectly, such inventions, idea, design, concept, copyright, without limitation whatsoever.
- 7.2 The Employee shall execute all such documents and do all such acts that may be required of him to assist the Employer in perfecting and enforcing its rights in connection with the registration of patent, copyrights or any other statutory protection in the Materials and other work products. The Employee agrees and undertakes to supply all information data, drawings and assistance as may be required to enable the Employer to use the intellectual property to its best advantage and shall execute all documents and do all things which may be necessary or desirable for obtaining patent or other protection for the intellectual property in such parts of the world as may be specified by the Employer and for vesting the same in the Employer or in the manner the Employer may direct.
- 7.3 All intellectual property rights connected to the company's activities shall be exclusively owned by the company and considered as such from all perspectives.

8. INDEMNITIES

- 8.1 The Employee hereby agrees to always indemnify and hold harmless the Employer and in all circumstances from any loss, claim, damages, costs, duties, taxes, penalties, interest thereon or costs and expenses of any kind, including legal costs and reasonable attorney fees to which the Employer may be subject, directly or indirectly, by virtue of:
- a breach of its warranties, obligations, representations, and duties under this Agreement.
 - any adverse finding related to the terms of this Agreement, or the Services required to be provided under the terms of this Agreement by the Employee.

- any contravention or non-compliance on the part of the Employee with any laws, rules, regulations, ordinances, codes, or other law and order proclamations of any governmental, judicial, or administrative authority as may be applicable and amended from time to time.
- any act, commission, omission, or negligence by the Employee and any resultant loss, damages, costs or expenses caused to the Employer due to improper handling of the Employer's Confidential Information or due to any act of omission, or negligence of the part of the Employee in relation thereto. any improper disclosure of the Employer's Confidential Information caused by the Employee.
- any improper disclosure of the Employer's Confidential Information caused by the Employee.
- any breach of the provisions of clauses 5 and 8.
- any act of negligence, misfeasance, or fraud by the Employee; and
- any damage caused to Employer property by the Employee.
- and undertakes to compensate the Employer fully and promptly in this regard.

9. DISPUTE RESOLUTION, GOVERNING LAW & JURISDICTION

- 9.1 Dispute Resolution: It is agreed that any dispute or difference of any nature in this agreement, whether implied or explicit, shall be adjudicated in Surat and the applicable laws of India shall be binding between the parties. In the event of any litigation, the courts at Surat should have exclusive jurisdiction. The standard terms and conditions of employment shall be applicable for all employees and the changes if any shall be updated and available on the official website of the company and would have to be adhered to. The implementation of the changes introduced would have to be coherently adhered to by the Employees. Any infringement or breach of the terms and conditions shall have serious repercussions in as much as the Company shall reserve it right to sue the Employee for any transgression before the Court of law after serving a formal notice. Every employee is duty bound to be vigilant and visit the official website of the company from time to time and be updated with the latest terms and the HR policies of the Company.
- 9.2 Governing Law: This Agreement, the construction, and enforcement of its terms and the interpretation of the rights and duties of the Parties hereto shall be governed by the laws of India as may be amended from time to time.
- 9.3 Jurisdiction: The Parties submit to the exclusive jurisdiction of the courts at Surat.

10. TERMINATION OF AGREEMENT

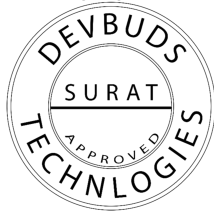
This Agreement may be terminated as follows:

- Termination for Cause: The Employer shall be entitled to terminate this Agreement with immediate effect on the failure of the Employee to perform its duties or commit a material breach of its obligations and covenants under this Agreement.
- If you are found to be medically, unfit.
- By the company at any time, if you are indulged in act of insubordination, interference, corrupt practices, any misconduct and breach of trust, non-compliance with the administrative orders or provision of rules.
- By the company, in case if you breach the terms & conditions mentioned in the Appointment Letter, NDA and other company policies.
- By the company at any time, if it has been found that the declaration or information including that given in seeking employment furnished by you found false and/or misleading and/or it has been found that you had wilfully suppressed any information to the company.
- By the company at any time if you are declared insolvent or convicted of any offense involving any moral turpitude or found. Suspected of fraud or misappropriation of money or other assets of the company as well as anywhere else convicted as guilty of any fraud, declared insolvent, and convicted of any offense involving moral turpitude and financial frauds or misappropriation under any law of the state.

- Relinquishment of Employment: In case the Employee absents himself/herself from duty for 7 days or more extended leave without the prior written consent of the Employer's authorized officers beyond any originally granted leaves, the Employer shall be deemed to have left and relinquished its employment with the company. Such automatic relinquishment of the contract of employment shall be deemed as a repudiation of the contract of employment by the Employee and not as a termination of the service by the Employer.
- Effect of Termination: Upon termination of its employment for any reason, the Employee shall deliver promptly to the Employer all records, manuals, books, blank forms, documents, letters, manuscripts, letterhead, business cards, memoranda, notes, notebooks, reports, data, tables, calculations, computers/PDAs, security/ID cards, keys, computer files, cell phones, Employer credit cards, financial statements or records, budgets or business plans or copies thereof, that are the property of the Employer or any of its affiliates and all other property, trade secrets and Confidential Information of the Employer or any of its affiliates, including but not limited to, all documents which in whole or in part contain any trade secrets or confidential information of the Employer or any of its affiliates, which in any of these cases are in her possession or under her control. The Employee undertakes to observe all post-termination covenants set forth in this Agreement or otherwise and confirm the same in writing to the Employer.
- Knowledge Transfer: Upon resignation/termination of employment, you agree to transfer the project knowledge fully and unconditionally to the Employer or the other associates assigned by the Employer. This includes verbal and written documentation.

SIGNATURES

I have read, understand and agree to comply with all provisions of the Remote Work Agreement. I understand that any violation of the terms of this agreement may result in disciplinary action up to and including termination. My signature serves as proof that I agree to the terms and conditions of this agreement.

EMPLOYEE NAME: MOHAMED ATEF ABDALLAH HAMED ID/Passport Number : A28953377	SIGNATURE: 	DATE: 1/6/2024 
MANAGER NAME: BASHAR MAHAJNA	SIGNATURE: 	